

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

TPG PRESSURE, INC., *Complainant*

v.

OMNI LOGISTICS LLC AND EPIC FREIGHT SOLUTIONS LLC,
Respondents.

DOCKET NO. 22-31

Served: May 15, 2024

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

ORDER REQUIRING PARTIES TO SUPPLEMENT THE RECORD

This order denies without prejudice Complainant TPG's motion for confidential treatment of a portion of the appendix ("Confidential Treatment Motion") and allows the parties to file a renewed joint motion for confidential treatment by May 30, 2024. In addition, this order grants Respondents' motion for leave to file a sur-reply and to supplement the record ("Sur-Reply Motion") and requires that any additional documents be filed by May 30, 2024.

Confidential Treatment

On February 22, 2024, TPG filed its brief with supporting documents and a motion for confidential treatment of a portion of the appendix requesting "that the Commission grant this motion and that it be given leave to submit a public redacted version of the material for which it seeks confidentiality." Confidential Treatment Motion at 2. It does not appear that the confidential version of the appendix properly marks the confidential material nor that a public version was filed.

TPG states that the "supporting documents filed in connection with TPG's Proposed Findings of Fact and Appendix that contain bates numbers from the bates sequences listed above were procedurally designated as confidential pursuant to the Order" and that "TPG is seeking confidential treatment under 46 C.F.R. § 502.5 for the supporting documents filed in connection with TPG's Proposed Findings of Fact and Appendix." Confidential Treatment Motion at 2.

The initial order in this proceeding addressed confidential material, requiring:

19. *Use in the proceeding* – If confidential information is filed in a memorandum or as an exhibit to a dispositive motion or as part of briefing on the merits, it must be accompanied by a motion justifying confidential treatment. This motion must identify each item for which protection is sought and show good cause by demonstrating that the information is a trade secret or other confidential research, development, or commercial information. 46 C.F.R. § 502.141(j)(1). The burden is on the party seeking to protect the information to show good cause for its protection.

20. *Filing* – Parties should file two versions of confidential filings marked as the “confidential version” and the “public version.” The confidential version may be provided to the Presiding Officer by email but should not be filed with the Office of the Secretary by email pursuant to Commission Rule 5. 46 C.F.R. § 502.5.

21. *Marking confidential material* – In the confidential version, confidential information must be conspicuously and clearly marked on each page, for example by highlighting or braces. The public version must indicate on the cover page and on each affected page “Public version – confidential materials excluded.” The public version must clearly indicate any omissions, for example with blackout or braces, and its pagination and depiction of text on each page must be identical to that of the confidential version. For example, the confidential filing may read: “On January 1, 2010, Complainant entered into a {25} year lease with respondent for a monthly rent of {\$1000}.” The public version would read: “On January 1, 2010, Complainant entered into a { } year lease with Respondent for a monthly rent of { }.”

22. *Exhibits* – Confidential information in exhibits should be marked as above. If marking within the text is not feasible, individual pages may be replaced in the public version with a page indicating that confidential material was excluded. Entire exhibits should not be excluded, only those pages containing confidential material.

Initial Order at 4-5.

The Confidential Treatment Motion does not identify each piece of information for which protection is sought and show good cause by demonstrating that the information is a trade secret or other confidential research, development, or commercial information. Moreover, citations to discovery bates numbers are not sufficiently clear. This case involves specific shipments that occurred at least two years ago and pricing information therein is likely stale. Moreover, other filings in this proceeding have not been designated as confidential. Any information that has already been made public is not entitled to confidential treatment. Therefore, the request for confidential treatment is denied without prejudice.

The parties may file a renewed request for confidential treatment, and Complainant must attach a public version of the appendix which excludes information for which confidential treatment is requested. This public version of the appendix must maintain the same CApp bates numbers as the confidential version. Parties may not mark entire depositions as confidential. Complainant is not required to refile the *confidential* version of its appendix.

A renewed motion for confidential treatment should be a joint motion and any objections should be included. Also, it must include a confidential request table, organizing requests for confidential treatment of exhibits by CApp bates number (not bates numbers used in discovery). The table should include: (1) the relevant Appendix volume, (2) the CApp bates range for each confidential document request, (3) the document’s description, (4) whether confidential treatment is being requested for the entirety of the bates range or only for certain material redacted from the public versions, and (5) the legal basis for the confidentiality request. If a particular bates range in an appendix does not include any confidential information, it does not need to be listed in the confidential materials list. This is an example of the format required:

<i>Appendix Volume</i>	<i>Bates Range</i>	<i>Description</i>	<i>Classification Requested for</i>	<i>Basis for Confidentiality Request</i>
Vol. 1	CApp #-#	Agreement dated [dd/mm/yy]	Pricing data on lines # and #.	Current confidential pricing data

Accordingly, the parties may file a joint motion justifying any request for confidential treatment of information in the Complainant's appendix by May 30, 2024. This renewed motion may not seek confidential treatment for more documents than in the February 22, 2024, motion. If confidential treatment is no longer sought, no motion is required, although an email to that effect would be appreciated. The Office of the Secretary is requested not to make the appendix public until the parties have an opportunity to file a renewed request for confidential treatment.

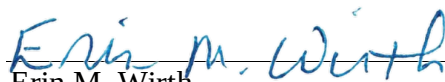
Sur-Reply

On April 30, 2024, Respondents filed a motion requesting leave to file a sur-reply with the proposed sur-reply attached. However, the sur-reply refers to 25 carrier invoices or payments and states that "Respondents should be permitted to supplement the record to add these documents to Respondents' Appendix." Sur-Reply Motion at 1. The supplemental documents were not attached to the filing.

Respondents request leave to file the sur-reply, arguing that TPG submitted new evidence and raised new arguments about certain evidence that TPG did not raise in its opening brief; TPG quietly advances a new theory as to its damages that was not set forth in its opening brief; and TPG continues to claim damages for amounts that Respondents charged but which TPG has not paid. Sur-Reply Motion at 3-8. TPG requests leave to supplement the record, arguing that TPG's revised damages chart omits demurrage invoices and proofs of payment that were produced in this litigation. Sur-Reply Motion at 8-10.

The time for TPG to object to the sur-reply has expired without any objection being received. In addition, Respondents' arguments for filing the sur-reply and additional documents are well taken, especially given TPG's filing of a revised shipment chart and damages chart with its reply brief. Therefore, the proposed sur-reply attached to the Sur-Reply Motion as Exhibit A will be accepted into the record. Respondents should provide the supplemental exhibits by May 30, 2024. They should have RApp bates numbers starting where the prior exhibits ended and must otherwise comply with the requirement for filings exhibits.

Accordingly, it is hereby **ORDERED** that TPG's Confidential Treatment Motion be **DENIED WITHOUT PREJUDICE** and a renewed motion, if any, be filed as a joint motion by May 30, 2024. In addition, it is hereby **ORDERED** that Respondents' Sur-Reply Motion be **GRANTED** and Respondents should file their supplemental exhibits by May 30, 2024.


 Erin M. Wirth
 Chief Administrative Law Judge